

## Calendar Line 7

**Case Name:** *Bryana Manchester v. American Honda Motor Company, Inc., et al.*

**Case No.:** 24CV452135

Defendant American Honda Motor Company, Inc. (“Defendant” or “Honda”) moves for summary adjudication of Plaintiff Bryana Manchester (“Plaintiff”)’s first, second, third and fourth causes of action in her Complaint (“Complaint”).

Plaintiff’s evidentiary objections to the Declaration of Brandon Bell in Support of Defendant’s Motion for Summary Adjudication are **SUSTAINED**. Defendant’s evidentiary objections to the Declaration of Bryana Manchester and to the Declaration of Jordan Helene Bourque are **OVERRULED**. The motion for summary adjudication of Plaintiff’s first, third and fourth causes of action are **DENIED**. The motion for summary adjudication of Plaintiff’s second cause of action is **GRANTED**.

### I. BACKGROUND

Plaintiff brings this action against Defendants American Honda Motor Company, Inc., and Does 1 through 50, inclusive, for claims related to Plaintiff’s purchase of a 2022 Honda Accord. (Complaint, ¶ 6.) Plaintiff alleges that on or about December 30, 2022, Plaintiff purchased a 2022 Honda Accord, which was “manufactured and/or distributed by Defendant.” (*Ibid.*) “In connection with the purchase of the [v]ehicle, Plaintiff received an express written warranty in which Defendant undertook to preserve or maintain the utility or performance of the Vehicle or to provide compensation if there is a failure in utility or performance for a specified period of time.” (Complaint, ¶ 10.)

During the warranty period, the infotainment system (“CarPlay”) and electrical system of Plaintiff’s vehicle developed defects in violation of the express written warranties and implied warranty of merchantability. (Complaint, ¶¶ 12, 13.) Plaintiff provided “Defendant and its representatives in this state sufficient opportunity to service or repair the vehicle,” but “Defendant and its representatives in this state were unable to and/or failed to service or repair the [v]ehicle within a reasonable number of attempts.” (Complaint, ¶¶ 14, 15.)

Plaintiff asserts five causes of action in her Complaint: (1) violation of Plaintiff’s statutory rights under Civil Code section 1793.2, subdivision (d); (2) violation of Plaintiff’s statutory rights under Civil Code section 1793.2, subdivision (b); (3) violation of Plaintiff’s statutory rights under Civil Code section 1793.2, subdivision (a)(3); (4) breach of express written warranty under Civil Code section 1791.2, subdivision (a) and section 1794; and (5) breach of implied warranty of merchantability under Civil Code sections 1791.1 and 1794.

On May 7, 2026, Defendant filed a motion for summary adjudication of the Complaint’s first, second, third, and fourth causes of action pursuant to Code of Civil Procedure section 437c. The motion is opposed. Defendant filed a reply and a supplemental declaration of counsel Brandon Bell in support of the motion for summary adjudication.

### II. MOTION FOR SUMMARY ADJUDICATION

#### A. Legal Standard

A motion for summary judgment “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.) “A defendant seeking summary judgment must show that at least one element of the cause of action cannot be established, or that there is a complete defense to the cause of action...The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72, internal quotation marks and citations omitted, emphasis added.) When a defendant moves for summary judgment, “its declarations and evidence must either establish a complete defense to plaintiff’s action or demonstrate the absence of an essential element of plaintiff’s case. If plaintiff does not counter with opposing declarations showing there are triable issues of fact with respect to that defense or an essential element of its case, the summary judgment must be granted.” (*Gray v. America West Airlines, Inc.* (1989) 209 Cal.App.3d 76, 81 (*Gray*).)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Aguilar, supra*, 25 Cal.4th at p. 844, internal quotation marks omitted.) The moving party’s evidence is strictly construed, while the opposing party’s evidence is liberally construed. (*Id.* at p. 843.)

“Summary adjudication works the same way, except it acts on specific causes of action or affirmative defenses, rather than on the entire complaint. (Code Civ. Proc. § 437c, subd. (f).) A summary adjudication is properly granted only if a motion therefore completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) Motions for summary adjudication proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc. § 437c, subd. (f)(2).)” (*Hartline v. Kaiser Foundation Hospitals* (2005) 132 Cal.App.4th 458, 464.)

## **B. Discussion**

### **i. Evidentiary Objections**

Both parties submit evidentiary objections. Plaintiff objects to Exhibits 3 and 4 to the Declaration of Brandon Bell in Support of Motion for Summary Adjudication (“Bell Decl.”). The Declaration of Brandon Bell identifies Exhibit 3 as a “a true and correct copy of [Defendant]’s new vehicle limited warranty applicable to Plaintiff’s vehicle” and Exhibit 4 as “a true and correct excerpt from the Owner’s Manual for the 2022 Honda Accord Hybrid relating to Apple CarPlay.” (Bell Decl., ¶¶ 4 & 5.) Plaintiff objects on the basis that both are inadmissible hearsay and that the declarant failed to establish personal knowledge of the facts or properly laid the foundation.

A declaration or affidavit in support of a motion for summary judgment or adjudication must affirmatively state facts establishing the witness’s personal knowledge and competence to testify on the matters in the statement. (Code Civ. Proc., § 437c, subd. (d).) Declarant does not provide any facts to show personal knowledge or lay a foundation for the admissibility of either Exhibit 3 or Exhibit 4 to the declaration. (See *San Jose Neurospine v. Aetna Health of*

*California, Inc.* (2020) 45 Cal.App.5th 953, 961-962 [declaration of counsel did not state sufficient facts to lay a foundation for the admissibility of a document where declarant indicated that he had personal knowledge, but did not state sufficient foundational facts to authenticate the document other than stating he was counsel for one of the parties].)

After Plaintiff made her evidentiary objections, Defendant filed a Supplemental Declaration of Brandon Bell in Support of Motion for Summary Adjudication (“Supplemental Bell Decl.”) concurrent with the filing of their reply. The moving party cannot present new evidence in reply and the court will not consider Defendant’s Supplemental Declaration. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-38 [“The general rule of motion practice . . . is that new evidence is not permitted with reply papers.”]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 [same]; *San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A.* (2002) 102 Cal.App.4th 308, 316 [same]; *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 783 [points raised in the first time in reply should not be considered]).

The court **SUSTAINS** Plaintiff’s evidentiary objections.

Defendant makes a general objection and 12 individual evidentiary objections to Plaintiff’s Declaration in Support of Opposition to Motion for Summary Adjudication (“Plaintiff’s Decl.”). Plaintiff’s declaration recounts her personal recollection of what occurred during her purchase of the vehicle and during subsequent repair visits, including why she took her car for a repair and where she took it. Plaintiff’s declaration also includes repair order documents associated with each visit. Plaintiff’s declaration thus “affirmatively state[s] facts establishing the witness’s personal knowledge and competence to testify on the matters in the statement.” (Code Civ. Proc., § 437c, subd. (d).) Defendant’s recitation of boilerplate evidentiary objections for relevance, legal conclusion, inadmissible opinion or speculation, oral testimony to prove content of writing, secondary evidence, and lack of foundation are unfounded and unpersuasive.

Defendant also makes a general objection and one evidentiary objection to the Declaration of Jordan Helene Bourque in Support of Opposition to Motion for Summary Adjudication. (“Bourque Decl.”) The declaration of Plaintiff’s counsel states that it is based on “personal knowledge and a careful review of the file and relevant court records,” and that Exhibit A to counsel’s declaration “is a true and correct copy of AHM’s response to Plaintiff’s Requests for Admission, Set One.” (Bourque Decl., ¶¶ 2, 3.) Once again, Defendant’s recitation of boilerplate evidentiary objections based on relevance and lack of foundation are unfounded and unpersuasive.

The court **OVERRULES** all 12 of Defendant’s objections to Plaintiff’s declaration. The court **OVERRULES** Defendant’s objection to counsel’s declaration.

**ii. First Cause of Action: Violation of Civil Code section 1793.2, subdivision (d)**

The Complaint’s first cause of action alleges a violation of Civil Code section 1793.2, subdivision (d), also called the Song-Beverly Act, which requires manufacturers or their representatives “in this state” who do not “service or repair the goods to conform to the applicable express warranties after a reasonable number of attempts...[to] either replace the goods or reimburse the buyer in an amount equal to the purchase price paid by the buyer[.]”

(Civ. Code, § 1793.2, subd. (d).) Defendant moves for summary adjudication on the basis that it is undisputed that on the two occasions when Plaintiff presented the vehicle for repair in California, Defendant only performed one repair, a reset of the audio unit, which “was not a warranty repair” because the warranty did not cover CarPlay performance or functionality. (Motion for Summary Adjudication (“Motion”), p. 6:1-7.) Defendant further argues that even if the repair was a warranty repair, there was an insufficient number of attempts to present the vehicle for repairs. (*Ibid.*)

Civil Code section 1793.2, subdivision (c) states that “[t]he buyer shall deliver nonconforming goods to the manufacturer’s service and repair facility within this state[.]” (Civ. Code, § 1793.2, subd. (c).) Defendant also points to Civil Code section 1793.2 subdivision (d)(2) which specifies that the remedy of restitution or replacement is available if “the manufacturer or its representative in this state” is unable to service or repair the vehicle “after a reasonable number of attempts.” (Civ. Code, § 1793.2, subd. (d)(2).) Plaintiff argues that code section does not require her to have presented her car for repairs only at facilities within the state of California and presents evidence that she presented the car for warranty repairs outside California. Plaintiff also states that the warranty booklet provided with the vehicle does not restrict her right to warranty repairs to repair facilities in California.

In *Cummins, Inc. v. Superior Court*, a case both parties cite for support, the court considered whether the statute also at issue in this case applied to goods *purchased* outside the state of California. (*Cummins, Inc. v. Superior Court* (2005) 36 Cal.4th 478, 488 (*Cummins*).) The court held that the general duty to replace goods that cannot be repaired is limited to goods sold within the state of California. (*Id.* at p. 489.) In coming to that conclusion, the court explicitly interpreted the language to not require repair attempts be made within the state: “although the statute requires the buyer to deliver the nonconforming goods to ‘the manufacturer’s service and repair... facilities within this state,’ it does not explicitly require that all of the ‘reasonable number’ of repair attempts be made within this state.” (*Id.* at pp. 492-493, quoting Civ. Code, § 1793.2, subds. (c) & d (2).)

Moreover, the “Song-Beverly Act is a remedial measure whose terms properly should be interpreted broadly to effectuate its purposes,” which the *Cummins* court identified as “protect[ing] purchasers of consumer goods by ... providing mechanisms to ensure that manufacturers live up to the terms of any express warranty.” (*Cummins, supra*, 36 Cal.4th at pp. 484, 493..) It would be contrary to the purpose of the statute, as well as contrary to dicta in *Cummins*, for this court to interpret the statute to exempt manufacturers from honoring express warranties on goods sold in the state of California that are presented for repair outside the state of California. “Our Supreme Court’s dicta are ‘highly persuasive,’ and we will generally follow it unless there is a compelling reason not to do so. [Citation.]” (*Masellis v. Law Office of Leslie F. Jensen* (2020) 50 Cal.App.5th 1077, 1093.)

Plaintiff’s declaration states that Plaintiff took the vehicle to AutoNation Spokane Valley for repairs seven times in the first two years of ownership. (Plaintiff’s Decl., ¶¶ 6-9, 11-13.) Spokane Valley is located in the state of Washington. (Evid. Code, § 451, subd. (f) [requiring judicial notice of “facts and propositions of generalized knowledge that are so universally known that they cannot reasonably be the subject of dispute”].) Plaintiff declared that she presented her vehicle for repairs in Washington for issues with the brakes, the check engine light, the front radar, and a rattle sound on acceleration, as well as issues with the

vehicle's CarPlay system.<sup>1</sup> (Plaintiff's Decl., ¶¶ 6, 11, 12, 15.) A review of the repair orders that Plaintiff included as exhibits to her declaration indicates that at least four of those repair visits in Washington occurred prior to the car accumulating 36,000 miles and thus could have been warranty repairs. (Plaintiff's Decl., Exs. A, B, F, G.) Plaintiff has presented evidence that she presented her vehicle for repairs outside the state of California. Because Plaintiff has presented evidence that she presented her vehicle for repairs in California *as well as* out of state, Plaintiff has presented triable issues of material fact. The issues of if each of the repair attempts were for issues covered by the warranty, if the repair attempts were within the warranty period, and if cumulatively, Plaintiff presented her vehicle for repairs a sufficient number of times *when out of state repairs are included* are all issues of disputed material fact.

Additionally, because out of state repair attempts are relevant to understanding Defendant's potential liability under the Song-Beverly Act, regardless of the warranty's disclaimer of CarPlay performance or functionality, Plaintiff may still have claims against Defendant for other issues within the terms of the warranty which she presented to Defendant for repair. Thus, Defendant has failed to meet its burden to "completely dispose of" Plaintiff's cause of action. (Code Civ. Proc., § 437c, subd. (f)(1).)

Independent of the applicability of Civil Code section 1793.2 to Plaintiff's out of state repairs, Plaintiff has also raised that Defendant's warranty handbook does not state that warranty repairs must take place in state. Under the heading "How to Get Warranty Service," the warranty handbook states that "[y]ou should take your vehicle, along with proof of the purchase date, to an authorized Honda automobile dealer during normal service hours." (Opposition, p. 13:18-20.) In Defendant's Reply to Plaintiff's Opposition to Motion for Summary Adjudication ("Reply"), Defendant concedes that the excerpt from the warranty handbook is correct and applied to Plaintiff's vehicle but argues that it is inconsequential. Defendant "sells vehicles in California, and in compliance with the statute ... authorizes service and repair facilities to perform warranty repairs here. That is all that matters under the Song-Beverly Act." (Reply, p. 6:3-5.) This would be true but for the provision of the Song-Beverly Act Plaintiffs cite, which states that "[t]he provisions of this chapter shall not preclude a manufacturer making express warranties from suggesting methods of effecting service and repair, in accordance with the terms and conditions of the express warranties, other than those required by this chapter." (Civ. Code, § 1794.5.) Plaintiff has thus presented evidence that Defendant's warranty may have created rights outside of the Song-Beverly Act, but Plaintiff's first cause of action is for a violation of the Song-Beverly Act, making Plaintiff's evidence irrelevant to summary adjudication of that cause of action.

Plaintiff raises a triable issue of material fact in dispute: if cumulatively, Plaintiff presented her vehicle for repairs a sufficient number of times *when out of state repairs are included*.

Defendant's motion for summary adjudication of Plaintiff's first cause of action for violation of Civil Code section 1793.2, subdivision (d) is **DENIED**.

**iii. Second Cause of Action: Violation of Civil Code section 1793.2, subdivision (b)**

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<sup>1</sup> The parties dispute if Plaintiff's warranty included CarPlay repairs, and this court has sustained Plaintiff's evidentiary objections to the warranty.

The Complaint's second cause of action alleges a violation of Civil Code section 1793.2 subdivision (b), which requires manufacturers to commence service and repair of goods not conforming with applicable express warranties within 30 days. (Civ. Code, § 1793.2, subd. (b).) Defendant moves for summary adjudication on the basis that Plaintiff only presented her vehicle for repairs on two occasions, and on each occasion, the vehicle was only with the Defendant for one day. (Motion, p. 1:18-25.) Defendant further states that only one repair was performed on the vehicle during those visits, a reset of the audio system in response to Plaintiff reporting that the CarPlay not working. (Motion, p. 5:1-7.) Defendant argues that the CarPlay repair could not be a repair giving rise to liability under the statute because the vehicle's CarPlay system was not a term of the express warranty. (Motion, p. 1:7-8.)

As explained above, Plaintiff disputes that she only presented the vehicle for repair twice and contends that the code section does not require that all of her repair attempts have been made in state. However, even including the out of state repair visits, the exhibits to Plaintiff's declaration indicate that Defendant commenced service and repair of her vehicle within 30 days. Exhibits A through J to Plaintiff's declaration are "true and correct cop[ies]" of repair orders associated with each of Plaintiff's repair visits, including her repair visits in Washington. (Plaintiff's Decl., ¶¶ 6-15.) The maximum amount of time that her vehicle was being repaired was 3 days, and in total, the exhibits to Plaintiff's declaration indicate that Plaintiff's vehicle was in Defendant's possession for a total of 12 to 13 days, fewer than the 30-day requirement.

Exhibit A to Plaintiff's Declaration is a "true and correct" copy of a repair order from a repair visit to an authorized representative of Defendant in Spokane Valley, Washington. It states that the "R.O." was opened on January 6, 2023, and the vehicle was ready on January 9, 2023. Assuming that R.O. means "repair order," the evidence indicates that Plaintiff's vehicle was with Defendant for 3 days on that occasion. Applying the same approach to Exhibits B through J, it appears that Plaintiff's vehicle was with Defendant 1 day in January 2023 (Ex. B), 1 day on two separate occasions in February 2023 (Exs. F and G), 1 day in May 2023 (Ex. C), and on every other occasion that Plaintiff presented her vehicle for repairs, her vehicle was returned on the same day. (Exs. D, E, H, I, J; Defendant's Undisputed Statement of Facts Nos. 13, 14 [undisputed that vehicle was with dealer one day during Sacramento repair visit associated with Ex. E and that vehicle was with dealer one day during Sunnyvale repair visit in May 2024].) Defendant's position is that the May 2024 Sunnyvale repair visit was not a warranty repair and should not be included in the tally, but if it was, the total number of days Plaintiff's vehicle was being repaired is 13 days, which is still fewer than 30 days. Thus, Plaintiff's own evidence establishes that fewer than 30 days of total repair time occurred.

Defendant's motion for summary adjudication of Plaintiff's second cause of action for violation of Civil Code section 1793.2, subdivision (b) is **GRANTED**.

**iv. Third Cause of Action: Violation of Civil Code section 1793.2, subdivision (a)(3)**

The Complaint's third cause of action alleges a violation of Civil Code section 1793.2 subdivision (a)(3), which requires manufacturers to make sufficient service literature and replacement parts to effect repairs during the express warranty period available to authorized service and repair facilities. (Civ. Code, § 1793.2, subd. (a)(3).) Defendant argues that "there

were no warranty repairs on the two occasions that Plaintiff took her vehicle to a Honda dealer in California...There is no evidence that the dealers did not have sufficient service literature and replacement parts to perform these services.” (Motion, p. 4:17-21.)

Defendant’s Separate Statement of Undisputed Facts in Support of Motion for Summary Adjudication does not address the availability of service literature and repair parts at the California repair facilities. (See *Parsons v. Estenson Logistics, LLC* (2022) 86 Cal.App.5th 1260, 1265, fn. 5 [if it is not set forth in the separate statement, it does not exist].)

Accordingly, Defendant’s motion for summary adjudication of Plaintiff’s third cause of action for violation of Civil Code section 1793.2, subdivision (a)(3) is **DENIED**.

v.     **Fourth Cause of Action: Violation of Civil Code section 1791.2, subdivision (a) and section 1794**

The Complaint’s fourth cause of action alleges a violation of Civil Code section 1791.2, subdivision (a), and section 1794. Civil Code section 1791.2, subdivision (a) defines “express warranty” as “[a] written statement arising out of a sale to the consumer of a consumer good pursuant to which the manufacturer, distributor, or retailer undertakes to preserve or maintain the utility or performance of the consumer good or provide compensation if there is a failure in utility or performance.” (Civ. Code, § 1791.2, subd. (a).) Civil Code section 1794 establishes a buyer’s private right of action for recovery of damages for failure to comply with warranty obligations. (Civ. Code, § 1794.) Defendant moves for summary adjudication on the basis that it is undisputed that on the two occasions when Plaintiff presented the vehicle for repair in California, Defendant only performed one repair, a reset of the audio unit, which “was not a warranty repair” because the warranty did not cover CarPlay performance or functionality. (Motion, p. 6:1-7.) Defendant further argues that even if the repair was a warranty repair, there was an insufficient number of attempts to present the vehicle for repairs. (*Ibid.*)

Plaintiff argues that the express warranty section did not require her to have presented her car for repairs only at facilities within the state of California and presents evidence that she presented the car for warranty repairs outside California. As explained above, Plaintiff has presented evidence that she presented her vehicle for repairs outside the state of California. The issues of whether each of the repair attempts were for issues covered by the warranty and whether the repair attempts were within the warranty period *when out of state repairs are included* are issues of disputed material fact. Plaintiff has presented evidence that she made multiple repair visits in the warranty period outside the state of California, and that on some of those repair visits, she reported issues unrelated to the CarPlay system. (Plaintiff’s Decl., ¶¶ 6, 11, 12, 15.). Thus, Defendant has failed to meet its burden to “completely dispose of” Plaintiff’s cause of action. (Code Civ. Proc., § 437c, subd. (f)(1).)

Defendant’s motion for summary adjudication of Plaintiff’s fourth cause of action for violation of Civil Code sections 1791.2, subdivision (a) and 1794 is **DENIED**.

### **III. CONCLUSION**

Plaintiff’s evidentiary objections are **SUSTAINED**. Defendant’s evidentiary objections are **OVERRULED**. The motions for summary adjudication of Plaintiff’s first, third, and fourth

causes of action are **DENIED**. The motion for summary adjudication of Plaintiff's second cause of action is **GRANTED**.

**SO ORDERED.**

The Court will prepare the Order.

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**Calendar Line 8****Case Name:** *Amrit Singh v. Ford Motor Company, et al.***Case No.:** 25CV459782**PLAINTIFF'S MOTION FOR ATTORNEY'S FEES & COSTS**

Plaintiff moves for attorney's fees and costs pursuant to Civil Code section 1794(d) following settlement of this action under the Song-Beverly Consumer Warranty Act. Defendant opposes the motion, primarily arguing that the fees requested are excessive.

**I. Reasonableness of Fees**

Civil Code section 1794(d) mandates an award of reasonable attorney's fees to a prevailing buyer. In determining a reasonable fee, courts apply the lodestar method, calculated by multiplying the number of hours reasonably expended by a reasonable hourly rate. *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.

Plaintiff seeks \$8,348.40 in attorney's fees based on an 16.3 hours of completed and anticipated work, enhanced by a multiplier of 1.2. Plaintiff also seeks \$2,036.44 in costs. Plaintiff requests hourly rates of \$400 - \$600 for attorneys and \$145 for paralegals. Plaintiff contends the requested rates are reasonable because of rates awarded in the same market to attorneys with comparable experience, as well as the survey of billing rates. Defendant argues the rates and hours are inflated, the case involved no novel or unique issues

Having reviewed the moving papers, opposition, reply, declarations, and billing records submitted, the Court finds that the number of hours expended is generally reasonable in this routine Song-Beverly repurchase claim that resolved after approximately 5 months that resolved through settlement before expert discovery, dispositive motions, or trial. The records are sufficiently detailed, and the Court does not find pervasive duplication or improper billing practices warranting a broad reduction in hours. No complexity multiplier is warranted.

With respect to hourly rates, the Court finds that the requested hourly rate exceeds the prevailing market rate in Santa Clara County for comparable consumer warranty litigation. While the Court recognizes counsels' experience in Song-Beverly matters, the Court finds \$550 per hour to be a reasonable rate for partner-level work and \$350 per hour to be a reasonable rate for associate-level work. These rates more closely reflect the prevailing market rates for comparable services in this community. The requested \$145 for paralegal work is reasonable. Accordingly, the lodestar shall be recalculated.

With respect to costs, Plaintiff seeks recovery of \$2,036.44, which is not in dispute. The Court requires further information regarding costs "Other" in the amount of \$519.74

Accordingly, the motion for attorney's fees and costs is GRANTED IN PART AND DENIED IN PART, as follows: